



NON-DISCLOSURE AGREEMENT

Relating to LYRA and Associated Intellectual Property

Governed by the Laws of Queensland, Australia

PARTIES TO THIS AGREEMENT

DISCLOSING PARTY (Owner): [FULL LEGAL NAME / COMPANY NAME], ABN: [ABN NUMBER], of [ADDRESS], Queensland, Australia

RECEIVING PARTY (Recipient): [FULL LEGAL NAME / COMPANY NAME], ABN/ACN (if applicable): [NUMBER], of [ADDRESS]

AGREEMENT DATE: [DATE]

PURPOSE OF DISCLOSURE: *[Insert purpose, e.g., evaluation of a potential investment in / partnership with LYRA]*

RECITALS

WHEREAS the Disclosing Party has developed a proprietary technology platform known as LYRA, together with associated software, algorithms, business methodologies, data, and intellectual property (collectively, the "LYRA Technology"); and

WHEREAS the Disclosing Party wishes to disclose certain Confidential Information to the Receiving Party for the Purpose set out above; and

WHEREAS the Receiving Party desires to receive such Confidential Information subject to the terms and conditions of this Agreement;

NOW, THEREFORE, in consideration of the mutual promises contained herein, and for other good and valuable consideration the receipt of which is hereby acknowledged, the parties agree as follows:

1. DEFINITIONS

In this Agreement, unless the context requires otherwise:

1.1 "Agreement" means this Non-Disclosure Agreement, including all schedules and annexures.

1.2 "Authorised Representatives" means, in relation to a party, that party's directors, officers, employees, agents, advisers, consultants and contractors who have a need to know the

Confidential Information for the Purpose and who are bound by confidentiality obligations no less stringent than those in this Agreement.

1.3 "Confidential Information" means all information, data, know-how, concepts, materials, documents and other information relating to LYRA, including without limitation:

- (a) all source code, object code, algorithms, artificial intelligence models, machine learning models, training data, datasets, neural network architectures, model weights and parameters, and any derivative works thereof;
- (b) technical documentation, specifications, system architectures, designs, schematics, flowcharts, wireframes, prototypes, test results and benchmarks;
- (c) business plans, financial projections, revenue models, pricing strategies, investor materials, pitch decks, term sheets and capitalization tables;
- (d) customer lists, user data, market research, competitive analyses and marketing strategies;
- (e) trade secrets, proprietary processes, methodologies, formulas, inventions (whether or not patentable), and research and development activities;
- (f) all intellectual property, including patent applications, copyright works, trade marks, designs and domain names related to LYRA; and
- (g) any other information that a reasonable person would consider to be confidential in the circumstances of its disclosure, whether or not marked as "Confidential".

1.4 "Disclosing Party" means the party disclosing Confidential Information under this Agreement.

1.5 "Intellectual Property" means all intellectual property rights anywhere in the world whether subsisting now or in the future, including copyright, patents, trade marks, designs, trade secrets, know-how, and all registrations and applications for registration of any of these rights.

1.6 "LYRA" means the proprietary technology platform, software, systems, artificial intelligence frameworks, and all related products and services developed by or for the Disclosing Party under the name LYRA, together with all associated Intellectual Property.

1.7 "Purpose" means the purpose described on the cover page of this Agreement.

1.8 "Receiving Party" means the party receiving Confidential Information under this Agreement.

1.9 "Term" has the meaning given in clause 10.1.

2. CONFIDENTIALITY OBLIGATIONS

2.1 The Receiving Party must, during and after the Term:

- (h) keep the Confidential Information strictly confidential and not disclose it to any third party without the prior written consent of the Disclosing Party;
- (i) use the Confidential Information solely for the Purpose and for no other purpose whatsoever;
- (j) protect the Confidential Information using at least the same degree of care it uses to protect its own confidential information, but in no event less than reasonable care;
- (k) limit access to the Confidential Information to its Authorised Representatives who need to know it for the Purpose;

- (l) ensure that each Authorised Representative is made aware of and complies with the terms of this Agreement before being given access to any Confidential Information; and
- (m) notify the Disclosing Party immediately upon becoming aware of any actual or suspected breach of this Agreement.

2.2 The Receiving Party must not, directly or indirectly:

- (n) copy, reproduce, reverse engineer, decompile, disassemble, or attempt to derive the source code or underlying ideas of LYRA;
- (o) use the Confidential Information to develop, build, or assist in developing or building any product, service or technology that competes with or replicates LYRA or any component thereof;
- (p) permit or assist any third party to do any of the foregoing; or
- (q) remove, obscure, or alter any proprietary notices, marks, or legends on any materials containing Confidential Information.

3. EXCEPTIONS TO CONFIDENTIALITY

3.1 The obligations of confidentiality in this Agreement do not apply to information that the Receiving Party can demonstrate by written evidence:

- (r) was already known to the Receiving Party at the time of disclosure, free of any obligation of confidentiality;
- (s) is or becomes generally available to the public other than as a result of an act or omission of the Receiving Party or its Authorised Representatives;
- (t) is received from a third party who is lawfully entitled to disclose it without restriction; or
- (u) is independently developed by the Receiving Party without use of or reference to the Confidential Information.

3.2 Required Disclosure. If the Receiving Party is required by law, court order, or any governmental or regulatory authority to disclose any Confidential Information, the Receiving Party must:

- (v) notify the Disclosing Party in writing as soon as reasonably practicable (to the extent permitted by law) so that the Disclosing Party may seek a protective order or other appropriate relief;
- (w) cooperate with the Disclosing Party in seeking such relief; and
- (x) disclose only that portion of the Confidential Information that is legally required to be disclosed.

4. INTELLECTUAL PROPERTY OWNERSHIP

4.1 Ownership. All Confidential Information and all Intellectual Property in LYRA, including all copies and derivatives thereof, remain the exclusive property of the Disclosing Party at all times. Nothing in this Agreement grants the Receiving Party any right, title, interest, licence, or ownership in or to any Confidential Information, Intellectual Property, or LYRA.

4.2 No Licence. The disclosure of Confidential Information under this Agreement does not grant the Receiving Party any express or implied licence, right, or interest in any Intellectual Property of the Disclosing Party, including any patent, copyright, trade mark, trade secret, or other proprietary right.

4.3 Derivative Works. Any improvements, modifications, adaptations, enhancements, or derivative works created by or on behalf of the Receiving Party based on or incorporating any Confidential Information shall be the exclusive property of the Disclosing Party, and the Receiving Party hereby assigns (and agrees to procure the assignment of) all rights in such works to the Disclosing Party.

4.4 Moral Rights. To the extent permitted by the *Copyright Act 1968* (Cth), the Receiving Party consents (and agrees to procure the consent of its Authorised Representatives) to the Disclosing Party exercising any and all acts in relation to the copyright works comprised in LYRA without attribution.

5. NON-SOLICITATION & NON-CIRCUMVENTION

5.1 Non-Solicitation. During the Term and for a period of two (2) years after its expiry or termination, the Receiving Party must not, without the prior written consent of the Disclosing Party, directly or indirectly solicit, recruit, employ or engage any employee, contractor or consultant of the Disclosing Party who was involved in the development of LYRA or who was introduced to the Receiving Party in connection with this Agreement.

5.2 Non-Circumvention. The Receiving Party must not, directly or indirectly, attempt to circumvent the Disclosing Party or enter into any business arrangement or transaction relating to LYRA with any customer, investor, partner, supplier, or other contact introduced or made known to the Receiving Party through or in connection with this Agreement, without the prior written consent of the Disclosing Party.

6. RETURN AND DESTRUCTION OF INFORMATION

6.1 Upon written request by the Disclosing Party at any time, or upon expiry or termination of this Agreement, the Receiving Party must promptly:

- (y) return to the Disclosing Party all documents and materials (and all copies, extracts and summaries thereof) containing or derived from Confidential Information in whatever form; or
- (z) if return is not practicable, irreversibly destroy all such documents, materials and copies and, upon request, provide the Disclosing Party with a written certification of such destruction signed by a duly authorised officer of the Receiving Party.

6.2 The Receiving Party may retain archival copies of Confidential Information to the extent required by applicable law or regulation, provided that such copies remain subject to the confidentiality obligations of this Agreement.

7. REMEDIES

7.1 Acknowledgement. The Receiving Party acknowledges that:

- (aa) LYRA and the Confidential Information are of a unique and special nature and that any unauthorised use or disclosure would cause immediate and irreparable harm to the Disclosing Party for which monetary damages would be an inadequate remedy; and
- (bb) the Disclosing Party shall be entitled to seek injunctive or other equitable relief, without the requirement of posting a bond or other security, in addition to all other remedies available at law or in equity.

7.2 Indemnity. The Receiving Party indemnifies and holds harmless the Disclosing Party and its officers, directors, employees and agents from and against all loss, damage, liability, cost and expense (including legal costs on a full indemnity basis) arising out of or in connection with any breach of this Agreement by the Receiving Party or its Authorised Representatives.

7.3 Cumulative Rights. The rights and remedies provided in this Agreement are cumulative and not exclusive of any rights or remedies provided by law.

8. REPRESENTATIONS AND WARRANTIES

8.1 Each party represents and warrants to the other that:

- (cc) it has full power and authority to enter into and perform this Agreement;
- (dd) this Agreement has been duly authorised and constitutes a valid and binding obligation enforceable in accordance with its terms; and
- (ee) the execution and performance of this Agreement does not conflict with or violate any applicable law, regulation, or agreement to which it is a party.

8.2 No Warranty. The Disclosing Party makes no representation or warranty, express or implied, as to the accuracy, completeness or fitness for any particular purpose of the Confidential Information, and shall not be liable for any loss or damage arising from the Receiving Party's reliance on or use of the Confidential Information.

9. PRIVACY

9.1 To the extent that any Confidential Information constitutes personal information within the meaning of the *Privacy Act 1988* (Cth) (as amended by the Privacy Legislation Amendment (Enhancing Online Privacy and Other Measures) Act 2021), each party must comply with the Australian Privacy Principles in Schedule 1 to that Act and any other applicable privacy legislation.

9.2 The Receiving Party must not use any personal information contained in the Confidential Information for any purpose other than the Purpose, and must not disclose such personal information except as required by law.

10. TERM AND TERMINATION

10.1 Term. This Agreement commences on the Agreement Date and continues for a period of five (5) years, unless earlier terminated in accordance with this clause 10 (the "Term").

10.2 Termination. Either party may terminate this Agreement by giving not less than thirty (30) days' written notice to the other party.

10.3 Survival. The obligations of confidentiality, intellectual property ownership, non-solicitation, non-circumvention, indemnity, and all other obligations that by their nature should survive, shall survive the expiry or termination of this Agreement indefinitely.

10.4 Continuing Obligations. Termination of this Agreement shall not release the Receiving Party from any obligation or liability that has arisen prior to the date of termination.

11. GOVERNING LAW AND DISPUTE RESOLUTION

11.1 Governing Law. This Agreement is governed by and construed in accordance with the laws of Queensland, Australia. Each party irrevocably submits to the exclusive jurisdiction of the courts of Queensland, Australia and any courts competent to hear appeals therefrom.

11.2 Dispute Resolution. If a dispute arises in connection with this Agreement (***Dispute***), either party may give written notice to the other party specifying the Dispute (***Dispute Notice***). Within fourteen (14) days of the Dispute Notice, senior representatives of the parties must meet and use good faith efforts to resolve the Dispute.

11.3 Mediation. If the Dispute is not resolved within twenty-eight (28) days of the Dispute Notice (or such longer period as agreed in writing), either party may refer the Dispute to mediation administered by the Resolution Institute or its successor body in accordance with its mediation rules before commencing court proceedings, except where a party seeks urgent injunctive or equitable relief.

11.4 Urgent Relief. Nothing in this clause 11 prevents a party from seeking urgent interlocutory or injunctive relief from a court of competent jurisdiction.

12. GENERAL PROVISIONS

12.1 Entire Agreement. This Agreement constitutes the entire agreement between the parties with respect to its subject matter and supersedes all prior agreements, representations, negotiations, and understandings, whether oral or written, relating to such subject matter.

12.2 Amendments. This Agreement may only be amended by a written instrument signed by duly authorised representatives of both parties.

12.3 Waiver. A failure or delay by a party to exercise any right or remedy does not operate as a waiver. A single or partial exercise of any right or remedy does not preclude any other or further exercise of that or any other right or remedy.

12.4 Severability. If any provision of this Agreement is found to be invalid, illegal or unenforceable by a court of competent jurisdiction, that provision shall be severed from this Agreement and the remaining provisions shall continue in full force and effect.

12.5 Assignment. The Receiving Party may not assign, transfer, novate or otherwise deal with any of its rights or obligations under this Agreement without the prior written consent of the Disclosing Party. The Disclosing Party may assign its rights under this Agreement without the Receiving Party's consent.

12.6 Counterparts. This Agreement may be executed in one or more counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument. Electronic signatures shall be deemed valid and binding.

12.7 Notices. Any notice under this Agreement must be in writing and delivered by hand, registered post, or email (with read receipt) to the address of the recipient party set out in this Agreement. Notices are deemed received: on delivery (hand), three (3) business days after posting (registered post), or on the first business day after transmission (email).

12.8 Relationship of Parties. This Agreement does not create a partnership, joint venture, employment, agency, or fiduciary relationship between the parties. Neither party has authority to bind the other.

12.9 Further Assurances. Each party agrees to execute and deliver such additional documents and instruments and to perform such further acts as may be reasonably necessary or desirable to carry out the intent and purpose of this Agreement.

12.10 Construction. This Agreement is to be construed without regard to any presumption or rule requiring construction or interpretation against the party causing this Agreement to be drafted. Unless the context requires otherwise, words in the singular include the plural and vice versa, and headings are for convenience only and do not affect interpretation.

EXECUTION

EXECUTED as an agreement by the parties on the date written below.

SIGNED for and on behalf of the DISCLOSING PARTY

Signature: _____

Full Name: _____

Position / Title: _____

Date: _____

Witness Signature: _____

SIGNED for and on behalf of the RECEIVING PARTY

Signature: _____

Full Name: _____

Position / Title: _____

Date: _____

Witness Signature: _____

IMPORTANT LEGAL NOTICE: This is a legally binding document. The parties are advised to seek independent legal advice before signing. This agreement has been prepared for use in Queensland, Australia under Australian federal and state law.